

of error abates his writ ; for it is repugnant that the successor of such a prior should have a writ of error if he could not implead nor be impleaded. And such prior, if he has no convent, is but as a monk ; and a fine levied by a monk of the possessions of the abbey, is void : for partes finis nihil habuerunt.

Contraria allegans non est audiendus.

Error may be brought upon a void judgment ; a proclamation made on Sunday is void, yet it may be assigned for error to reverse a fine ; but a party and privy ought to bring this writ of error. A levies a fine of lands to B. C. cannot have a writ of error to reverse this fine, although C. be in possession, and tenant in fee-simple of the land.

CASE VII.

A. brings a false and feigned action against B. by which B. is cast into prison, and dies pending the suit : the law gives no remedy in this case ; for the truth or falsehood of the matter cannot appear before it is tried ; and if the plaintiff be barred or nonsuited, at Common Law, regularly all the punishment is amercement.

At this day if a demurrer be adjudged against the plaintiff, he shall not pay costs, he shall only be amerced : so where an executor is plaintiff, and he is nonsuit, or a verdict passes against him ; for the statutes which give costs to the defendant, give them only after nonsuit, or verdict against the plaintiff, in cases where the suit is for a wrong or contract between the contending parties ; as appears by the statutes which give [162] costs to the defendant. 7 H. 8, 7. 21 H. 8. 4 Jac. 1. The Chancery makes a decree concerning land, which is disobeyed : there is no remedy but imprisonment. Where a bill of indictment of felony was found ignoramus, a judge of record procured it to be rased, and to be indorsed, *billa vera* : this offence is not punishable by the law ; for that would tend to falsify and avoid a record ; but if a judge of record takes bribes, he shall be indicted for it ; and if he be convicted, he shall lose his office and be fined and imprisoned. 27 E. 3. F. N. B. 243. 8 H. 6, cap. 12. To erase a record, by which rasure judgment is reversed, is felony. Debt was brought against John Barret in the Common Pleas by original writ ; whereas in truth his name was Robert Barret ; the original was against John, and the three *capias*'s and exigent accordingly ; the original was rased in London and made Robert ; and the three *capias*'s and the exigent were also rased in Middlesex, and made Robert : this rasure is made felony by this statute ; for this rasure makes the judgment against John void ; and all these rasures were but one felony ; and no person can be indicted for felony but where the fact was committed ; and London cannot be joined with Middlesex nor with any other county ; and therefore this offence as a felony cannot be tried ; and therefore because the judges could not punish it as a felony, they punished it as a misprision of felony ; the punishment of which is ransom and imprisonment. Ransom is a fine trebled ; for misprision of treason the punishment is imprisonment for life, and the forfeiture of all the goods and chattels, and profits of the lands of the offender during his life. *Interest reipublice ne malefici remaneant impuniti.*

A judge ignorantly condemns a man to death for felony, when it is not felony ; in a manor-court which has the franchise of infangthief : for this offence the judge shall be fined and imprisoned, and lose his office ; and the lord shall lose his franchise. These points were resolved in the Star-chamber, upon an assembly of all the judges there, by the command of King R. 3. The assembly of the judges was formerly, sometimes at St. Andrew's, Holborn ; sometimes at Black Fryars. It seems that there were not then any Serjeants Inns. 2 H. 4, 8. 1 H. 7, 4. 1 H. 7, Mich. Term, 2. 3 H. 7, 10. 6 H. 7, 1 & 2. 9 H. 7, 23. 7 E. 4, 12. The four inns of court. 4 E. 4, 45. Davies's Inn in the time of H. 6. 19 H. 8, 13, the judges assembled at Serjeants Inn.

CASE VIII. 2 R. 3, 2. Indictment, Coroner, Principal and Accessary.

A murderer was indicted before a coroner, *super visum corporis* ; but the indictment was insufficient ; the body lay in the sepulchre fourteen days, and was dug up ; and the murderer was indicted again, and some that were accessaries before the fact. The first indictment was void in law, and it omitted the accessaries before the fact. By the judges of both benches, this digging up the corps, and the new indictment, are according to law.

Non præstat impedimentum quod de jure non sortitur effectum. The first indictment, because it is void, can be no hinderance to a second. The coroner has nothing to do with the accessaries after the fact; for they do not concern the life of the man slain, but the receipt of the manslayer.

CASE IX. 2 R. 3, 7. Corporation, Precedents.

The mayor and commonalty of Southampton have an assignment from the King of a sum of money, to be paid yearly to them and their successors, out of the customs of this town and port: the mayor alone makes an acquittance upon receiving it; this does not bind the corporation in strictness of law; but because 100 precedents were shewn which allowed it, it was allowed by all the judges of England.

[163] The mayor and commonalty are one indivisible body: the mayor, as mayor, can do nothing regularly; for he is the head of the corporation aggregate, and is only a part of it: but usage and precedents are not to be neglected in things indifferent, or which are not mala in se.

Novitas perturbat; nil temere novandum.

CASE X. 2 R. 3, 81. 1 Cr. 452. 35 H. 7, 16. Statutes, Process, Eviction, Certificate, Retorne de Viscount.

A statute staple or merchant is once certified in Chancery, there is no occasion for a new certificate if the conusee dies; but there is occasion if the Chancellor be named by his Christian name, and dies; or if the first certificate was insufficient. Upon a statute staple, a *capias* and extent of lands, goods, and chattels are contained in one writ; but it is not so upon a statute-merchant. If the land be extended upon this writ, and the body be not found; a new *capias* shall not be directed to the sheriff of another county, without a *testatum* that *latitat* there. The executor of the conusee must have a new certificate; for the certificate had in the life of the conusee will not serve. A *scire facias* does not lie for the executor; for the statute prescribes the process, and that must be used: as Westm. 2, cap. 35, gives the writ of ravishment of ward; this writ has not the words *vi & armis*: for this would not follow the form prescribed by the statute. Lands extended are evicted, at common law a new extent would not lie; so if the husband died seised in right of his wife: but at this day, by the statute 37 H. 8, where there is a total eviction, a new extent may be awarded. But at common law, and at this day, such eviction does not hinder a *capias* for the body of the conusor. Where, after a younger statute is extended, an *extendi facias* upon an elder statute comes to the sheriff; the sheriff has his choice whether to return this matter, or to extend the elder statute.

By all the judges of England.

CASE XI. 2 R. 3, 13, 21. 9 El. Dyer, 258. 14 El. Dyer, 320. Action sur le case. *Ayd le Roy*.

A. brought an action upon the case against the bishop of Ely, for claiming the plaintiff to be his villein, and lying in wait to take him, so that he dared not attend his business; the defendant pleads that the plaintiff is his villein regardant to his manor of Dale; and upon this they are at issue; pending which, the said manor was seised into the King's hands, for an offence committed by the bishop; and upon this, a writ was awarded out of Chancery, that no proceeding should be *Rege inconsulto*: for, if a trial should pass for the plaintiff, it might be evidence against the King.

By the judges of both benches.

The King may grant his aid, or *Rege inconsulto*, in trespass and *ejectione firmæ*; but a search can be granted only upon a petition of right.

CASE XII. 2 R. 3. Dally, 109. Fitz. Estoppel, 181.

A. is bound to B. in an obligation; A. is named of Dale without an addition; B. sues A. upon this obligation; A. shall not be received to plead, that there is Over-Dale, and Nether-Dale, and that there is no Dale without an addition: for the

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